25CMCV01646 25CMCV01646

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-07

Motion: MOTION TO COMPEL ARBITRATION AND TO STAY ACTION UNTIL COMPLETION OF ARBITRATION DATE: July 7, 2026 TIME: 8:30 A.M.

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C07%2F07%2F2026

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Case Number: 25CMCV01646 Hearing Date: July 7, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

SERGIO NAVA ORTIZ, an Individual,

Plaintiff,

vs.

TWTH EXPRESS INC., a California Corporation; FAST- CHAIN, INC., a California Corporation; SHENGWEI XIE, an individual; and DOES 1 through 100, inclusive,

Defendants.

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CASE NO: 25CMCV01646

[TENTATIVE] ORDER RE: MOTION TO COMPEL ARBITRATION AND TO STAY ACTION UNTIL COMPLETION OF ARBITRATION

DATE: July 7, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Parties: Defendant TWTH Express, Inc., Fast-Chain, Inc., and Shengwei Xie

Responding Party: Plaintiff Sergio Nava Ortiz

Notice: Ok

Tentative Ruling: Defendants' Motion to Compel Arbitration and to Stay Proceedings is DENIED.

I. BACKGROUND

This is an employment action. Plaintiff Sergio Nava Ortiz alleges that he was employed by Defendants TWTH Express, Inc. ("TWTH"), Fast-Chain, Inc. ("Fast-Chain") and Shengwei Xie ("Xie")(collectively, the "Defendants") as a forklift operator. Plaintiff alleges that during his employment he worked extensive overtime hours but Defendants failed to pay him for the overtime hours and maintained a "double-timeclock" system in an effort to avoid paying overtime. Plaintiff also alleges that he was not permitted the proper number of meal breaks, was not compensated for his mileage, and was provided inaccurate wage statements, among other things.

On September 30, 2025, Plaintiff filed his initial Complaint against TWTH, Fast-Chain, Xie, and Does 1 through 100, inclusive, alleging causes of action for: (1) Failure to Provide Meal Periods; (2) Failure to Provide Rest Periods; (3) Failure to

Pay Overtime/Double Time Wages; (4) Failure to Provide Accurate, Itemized Wage Statements; and (5) Waiting Time Penalties.

On September 15, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") alleging the same causes of action as his initial Complaint and adding two new causes of action for: (6) Violation of Business & Professions Code § 16600 et seq.; and (7) Violations of Business and Professions Code § 17200 et seq.

On January 6, 2026, Defendants filed the instant Motion to Compel Arbitration and Stay Action Until Completion of Arbitration.

On April 23, 2026, Plaintiff filed his Opposition.

On April 29, 2026, Defendants filed their Reply.

II. ANALYSIS

A. Legal Standard

A party to an arbitration agreement may summarily move or petition the Court for an order compelling another non-compliant party to arbitrate their covered claims. (See Civ. Proc. Code §§ 1281.2, 1290.2.) California law reflects a strong public policy favoring arbitration and the fundamental principle that arbitration is a matter of contract. (See Moncharsh¿v.¿Heily¿&¿Blase¿(1992) 3 Cal.4th 1, 8-9.) Pursuant to California law, "'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.'"¿(Higgins v. Superior Court¿(2006) 140 Cal.App.4th 1238, 1247 ("Higgins"); Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 569 ("Quach").)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc. § 1281.2; Gorlach v. Sports Club Co. (2012) 209 Cal.App.4th 1497, 1505 (noting that "when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute").)

The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the opposing party bears the burden of proving any fact necessary to its defense by the same evidentiary standard.¿(Gatton v. T-Mobile USA, Inc.¿(2007) 152 Cal.App.4th 571, 579.)

Finally, "[i]f a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. § 1281.4.)

B. Request for Judicial Notice ("RJN")

Plaintiff requests the Court take judicial notice of a printout from the official website of ADR Services, Inc. ("ADR Services") reflecting the available arbitration rules (RJN, Exh. A) and a copy of the ADR Services' arbitration rules (RJN, Exh. C), both pursuant to Evidence Code §§ 451(f), 452(h), and 453.

Pursuant to Code of Civil Procedure § 452(h), the Court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code §452(h).)

Because ADR Services' publicly available rules are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy, the Court GRANTS Plaintiff's Request for Judicial Notice and takes judicial notice of Exhibits A and B attached to Plaintiff's RJN.

C. Discussion

Defendants move the Court for an order compelling arbitration of Plaintiff's claims asserted against it and for an order staying the action pending the completion of arbitration proceedings. Plaintiff opposes, arguing that: (1) the agreement is vague and ambiguous as to the rules governing any arbitration; and (2) the agreement is both procedurally and substantively unconscionable.

1. Existence of an Agreement to Arbitrate

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court's determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

Courts apply a three-step burden-shifting process to determine whether an agreement to arbitrate exists. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 164 ("Gamboa").) "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (Id. at p. 165 (quoting Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413).) The moving party can meet this initial burden by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature or setting forth the agreement's provisions in the motion. (Gamboa, supra, at p. 165; Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160 ("Baker"); Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060 ("Espejo").)

For the purposes of this initial burden, "it is not necessary to follow the normal procedures of document authentication." (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218; Gamboa, supra, 72 Cal.App.5th at p. 165.) Rule of Court 3.1330 provides that a motion or petition to compel arbitration pursuant to Code Civ. Proc. §§ 1281.2 and 1281.4, "must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration." (Ibid.) "The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Id.)

"If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence—in this instance, by disputing the authenticity of their signatures. To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature." (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

Defendants set out the provisions of the arbitration agreements and attach copies of the arbitration agreements as Exhibit A to the declaration of counsel Ching-Che Lin ("Lin"). The agreements provide:

"P. Arbitration

The Parties mutually agree that any controversy or claim arising out of or relating to this Agreement, including the issue of arbitrability, whether based on statute or contract, which the Parties are unable to resolve, shall be finally resolved and settled exclusively by binding arbitration in Los Angeles County, California by a single arbitrator acting under the Commercial Arbitration Rules of the ADR Services Inc. ("ADR") that shall provide for a neutral arbitrator, adequate discovery, and limited judicial review. The Arbitrator has discretion to award arbitration cost and reasonable attorney fees to be paid by the non-prevailing party. The arbitration award may be entered into judgment by court in any relevant jurisdictions."

(See Lin Decl., ¶ 2, Exh. A, p. 5.)

The agreements each contain a signature block that apparently includes Plaintiff's signature. (See Lin Decl., ¶ 2, Exh. A, p. 6.)[1]

The Court finds that Defendants have satisfied their initial burden of demonstrating the existence of agreements to arbitrate between Defendants and Plaintiff both by setting out the agreement provisions in the body of their motion (see Mot., p. 4:1-8) and by attaching copies of the arbitration agreements to the Lin declaration. (See Gamboa, supra, 72 Cal.App.5th at p. 165; Baker, supra, 13 Cal.App.5th at p. 1160; Espejo, supra, 246 Cal.App.4th at p. 1060.)

Plaintiff does not oppose the authenticity of the arbitration agreements.

Accordingly, the Court finds that Defendants have satisfied their initial burden to demonstrate the existence of the arbitration agreements.

2. Scope of the Arbitration Agreement

Defendants have presented sufficient evidence, through the arbitration agreement, to demonstrate that Plaintiff's claims against Defendants fall within the scope of the agreement. The arbitration provision in the employment agreement provides that, "any controversy or claim arising out of or relating to this Agreement" is to be resolved by arbitration. (Lin Decl., ¶ 2; Exh. A, p. 5.) Plaintiff's claims of failure to provide meal periods, rest periods, overtime wages, accurate wage statements and waiting time penalties, and claims for violations of the Business and Professions Code each arise out of Plaintiff's employment with Defendants.

Plaintiff does not argue that his claims fall outside the scope of the arbitration agreement.

Accordingly, the Court finds that Plaintiff's claims fall within the scope of the arbitration provision in the employment agreement.

3. Vagueness and Ambiguity

As is noted above, pursuant to California law arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract. ¿(Higgins, supra, 140 Cal.App.4th at p. 1247; Quach, supra, 16 Cal.5th at p. 569.) One of the grounds at law to void a contract is vagueness or ambiguity. "Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable." (Cal. Lettuce Growers v. Union Sugar Co. (1955) 45 Cal.2d 474, 481; see also Civ. Code §1598 ("Where a contract has but a single object, and such object is . . . so vaguely expressed as to be wholly unascertainable, the entire contract is void").)

Plaintiff argues that the agreement states the arbitration is to be conducted pursuant to the "Commercial Arbitration Rules of the ADR Services, Inc.," but ADR Services has no separate set of Commercial Arbitration rules, which makes it impossible for the parties to determine applicable rules under which the arbitration should be conducted and severing the provision would require the Court to rewrite the agreement to identify the proper arbitration provider.

Defendants do not argue this point on Reply.

The Court does not find the reference to “Commercial Arbitration Rules” in the arbitration agreements to be so vaguely expressed as to make the parties’ intent wholly unascertainable. As Plaintiff provides in his Exhibits A and B to his requests for judicial notice, ADR Services has a set of arbitration rules, none of which are “Commercial Arbitration Rules” as set forth in the parties’ arbitration agreement. However, although ADR Services does not have a set of “Commercial Arbitration Rules,” it appears from the documents judicially noticed that there is one set of rules applicable to all arbitrations performed by ADR Services. Given that there is only one set of arbitration rules, Plaintiff does not persuasively argue why the reference to the ADR Services’ “Commercial Arbitration Rules” rules is so vague and ambiguous that it renders the agreement void; where there is only one set of rules, an “ambiguous” reference to those rules can only mean one thing.

Accordingly, the Court does not find that the terms of the arbitration agreement as so vague as to render the agreement void on this basis.

4. Defenses Against Enforcement

“A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 125 (“OTO”) (citing Sonic-Calabasas A, Inc. v. Moreno (2013) 57 Cal.4th 1109, 1133).) The assessment of unconscionability falls within two categories: procedural and substantive, where the former is concerned with the process of contract formation and the latter with the contractual terms themselves. (See Farrar v. Direct Commerce, Inc. (2017) 9 Cal.App.5th 1257, 1265.) A finding of some degree of both is required to deem a contract unenforceable; however, the two forms are evaluated on a sliding scale where they function on an inverse relationship. (See id.) “‘The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.’” (Id. (quoting Pinnacle Museum Tower Ass’n v. Pinnacle Mkt. Dev. (US), LLC (2012) 55 Cal.4th 223, 247).)

Plaintiff argues that the agreement at issue is unenforceable because it is both procedurally and substantively unconscionable.

i. Procedural Unconscionability

“‘Procedural unconscionability’ concerns the manner in which the contract was negotiated and the circumstances of the parties at that time. It focuses on factors of oppression and surprise. The oppression component arises from an inequality of bargaining power of the parties to the contract and an absence of real negotiation or a meaningful choice on the part of the weaker party. The component of surprise arises when the challenged terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (Nyulassy v. Lockheed Martin Corp. (2004) 120 Cal.App.4th 1267, 1281.) If procedural unconscionability exists, the court will examine the substantive terms of the agreement to make certain they are not one-sided or manifestly unfair. (See Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1244.) Both elements must be present for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. (See Mission Viejo Emergency Medical Assns. v. Beta Healthcare Group (2011) 197 Cal.App.4th 1146, 1159.)

Plaintiff contends that the agreement is procedurally unconscionable because it was an oppressive contract of adhesion. Plaintiff argues Defendant exerted great economic pressure on Plaintiff because Plaintiff was not a high earning, highly sought after employee and Plaintiff was not in a financial position to refuse this employment. Plaintiff also argues that Defendants were aware that Plaintiff lacked the capacity to understand the language of the agreement, but Defendants made no attempt to translate the agreement for him, and Plaintiff was unable to understand the legal terminology, even if it had been explained to him.

Defendants counter that Plaintiff is still bound to the agreement even if he did not understand the language in which the document was written and that Defendants did not fraudulently induce him. Defendant argues that although the arbitration agreement was contained in an employment agreement and presented to Plaintiff on a take it or leave it basis, this does not render the agreement unenforceable.

Plaintiff's attestations that he is unable to read written English and does not understand legal documents without the advice of an attorney do not render the agreement procedurally unconscionable. In ruling on a petition to compel arbitration, the Court is guided by general principles of California contract law. (See Diaz v. Sohnen Enters. (2019) 34 Cal.App.5th 126, 129.) The law generally presumes that everyone who signs a contract has read it thoroughly; in the absence of fraud, overreaching or excusable neglect, a party signing a contract may not avoid the impact of its terms on the grounds that he failed to read it. (See Roldan v. Callahan & Blaine (2013) 219 Cal.App.4th 87.) Plaintiff does not contest that he signed the arbitration agreement and is therefore presumed to have read and understood it. As Defendants correctly note in their Reply, the fact that an arbitration agreement is executed in a language not completely understood by the party, without more, does not bar enforcement of the agreement. (See Ramos v. Westlake Service LLC (2015) 242 Cal.App.4th 674, 687 ("Under the general contract principles just discussed, the fact that [Appellant] signed a contract in a language he may not have completely understood would not bar enforcement of the arbitration agreement".)

To the extent that Plaintiff declares that he did not have a choice of not signing the agreement, the Court does recognize some limited procedural unconscionability stemming from the relative position of the parties upon execution. However, the fact that the agreement may have been one of adhesion does not, without more, invalidate the arbitration agreement. (See, e.g., Lane v. Francis Capital Management, LLC (2014) 224 Cal.App.4th 676, 689-690 ("[A]ssuming the agreement was one of adhesion, courts have consistently held that that fact alone is insufficient to invalidate an arbitration agreement: 'Rather, an adhesion contract remains fully enforceable unless ... the provision falls outside the reasonable expectations of the weaker party' or it is unconscionable")(quoting Fittante v. Palm Springs Motors, Inc. (2003) 105 Cal.App.4th 708, 722).)

Accordingly, the Cout finds only limited procedural unconscionability and does not the parties' arbitration agreement unenforceable solely on this basis.

ii. Substantive Unconscionability

Substantive unconscionability "examines the fairness of a contract's terms" to ensure they "do not impose terms that [are] overly harsh, … unduly oppressive, … [or] so one-sided refers as to shock the conscience." (See OTO. L.L.C. v. Kho (2019) 8 Cal.5th 111, 129 (internal citations omitted).) When relating to employment contracts, an arbitration agreement is enforceable if it contains the following essential elements: "(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum." (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 102 ("Armendariz").)

Plaintiff argues the agreement is substantively unconscionable because it is overly harsh. Plaintiff argues the agreement does not require the employer to bear the cost of arbitration and allows the arbitrator to award attorney fees and costs that may not otherwise be allowed in court. Plaintiff further argues the arbitration agreement does not explicitly provide for adequate discovery and does not provide for a written decision.

Defendants argue in reply that the agreement is not substantively unconscionable because it meets the five minimum requirements set forth in Armendariz. Defendants argue that the arbitration agreement provides for a neutral arbitrator, the agreement does not limit the scope of discovery, and the agreement affords relief for discovery that is otherwise available in court. Defendants argue that a written decision is not a required element for substantive unconscionability. Defendants also argue that Plaintiff fails to argue that he is being forced to bear unreasonable costs and fees to access the arbitrator's forum.

A. Neutral Arbitrators, Adequate Discovery, and a Written Award

The parties' agreement specifically calls for a "neutral arbitrator." (Lin Decl., § 2, Exh. A, p. 5.) The Court finds no unconscionability there. The parties' agreement, however, does not specifically address any requirement for a written award or "adequate discovery." In the absence of specific provisions, the Court turns to the ADR Services' rules as referenced in the parties' agreement and attached to Plaintiff's RJN. ADR Services' rules regarding discovery require an initial disclosure of "all nonprivileged documents and other reasonably available information relevant to the dispute or claim, including electronically stored information ("ESI") and further requires the producing party to provide a privilege log if any documents are withheld on an assertion of privilege. (Lin Decl., ¶ 2, Exh. A., p. 13, ¶ 22.) ADR Services' rules further provide that "[a]fer the appointment of the arbitrator or arbitrators, the parties to the arbitration shall have the right to obtain discovery and to use and exercise the same rights, remedies and procedures, and be subject to the same duties, liabilities and obligation in the arbitration as if the subject matter of the arbitration were pending before a superior court of California. (Id.) Since the applicable rules both provide for an initial disclosure of relevant non-privileged information and provide the parties with the same extent of discovery as would be allowed if the matter were pending in the Superior Court, the Court does not find any inadequacy in the allowed discovery.

As to a written award, ADR Services' rules require that "[t]he Arbitrator [] render a written, reasoned Award enumerating the disposition of the relevant material claims and relief sought." (Id., p. 19, ¶ 35c.) The Court finds no unconscionability there.

B. Unreasonable Costs or Fees

The Court finds merit in Plaintiff's argument that, given the language of the arbitration agreement vesting the arbitrator with discretion to award fees and costs, and contrary to Armendariz, he could be required to bear the cost of arbitration.

First, ADR Services' rules with regard to payment of the Arbitrator's compensation provide "[c]ounsel for each party, subject to apportionment by the arbitrator as set forth below, shall pay a pro rata share of the arbitrator's fees and expenses unless the parties' agreement or other applicable law requires a different allocation. The parties shall agree on the applicable fee split at the outset of the matter and, if unable to do so, initial fees will be assessed on a pro rata basis subject to reassessment by the arbitrator." (See RJN, Exh. B, p. 21, ¶ 43.) Thus, and although the arbitrator is permitted to reassess fees, it is left to "applicable law" and the parties' mutual agreement to initially determine the allocation of fees. If the parties are not able to come to an agreement, the fees are split pro rata, subject to reallocation. This structure may indeed result in Plaintiff's payment of the arbitrator's fees as a condition of access to the arbitration forum; according to the applicable rules, should the parties fail to agree Plaintiff will be assessed a pro rata share. That Plaintiff might, in the arbitrator's discretion be reimbursed those fees is of no import. The question is whether Plaintiff would be required to pay arbitrator's fees as a condition of access and the answer is "quite possibly."[2]

Second, the arbitration agreement itself vests the Arbitrator with "discretion to award arbitration cost and reasonable attorney fees to be paid by the non-prevailing party." (Lin Decl., ¶ 2, Exh. A, p. 5.) This is in direct contrast to California law. Except for certain situations, for wage claims such as are presented here the Labor Code authorizes a fee award only to the prevailing Plaintiff. (See Lab. Code § 1194 ("Notwithstanding any agreement to work for a lesser wage, any employee receiving less than the legal minimum wage or the legal overtime compensation applicable to the employee is entitled to recover in a civil action the unpaid balance of the full amount of this minimum wage or overtime compensation, including interest thereon, reasonable attorney's fees, and costs of suit").) An attorney fee award to a prevailing employer is not discretionary; such an award is only permitted where the court finds an employee brought the action in bad faith. (Labor Code § 218.5; see USS-POSCO Indus. v. Case (2016) 244 Cal.App.4th 197, 215-216.) Given the statutory language limiting on the Court's discretion in awarding fees to a prevailing defendant and the contrary contractual language presented, the Court finds the parties' arbitration agreement may indeed permit the imposition of unreasonable costs or fees.

In accordance with the above, the Court finds a high level of substantive unconscionability in the parties arbitration agreement. Plaintiff may be assessed costs and fees far above what would be faced to access a superior court. Together with the prior finding of some limited procedural unconscionability, the Court finds the parties' arbitration agreement is unenforceable.

III. CONCLUSION

Defendants' Motion to Compel Arbitration is DENIED.

A.

Case Management Conference Orders

Trial in this matter is scheduled

for January 18, 2028 at 9:30 a.m. in Dept. E of the Compton Courthouse.

A Final Status Conference is

scheduled for January 7, 2028 at 9:30 a.m. in Dept. E of the Compton

Courthouse.

A Post-Mediation Status Conference

is scheduled for December 17, 2027 at 8:30 a.m. in Dept. E of the Compton

Courthouse.

Any party seeking a jury must post

jury fees by October 30, 2026, if they have not already done so. If jury fees are not timely posted, jury

shall be deemed waived by the party failing to post.

The parties are required to appear

in person at the Final Status Conference.

The parties are directed to view an

follow the instructions contained in the two memos on the Court's website
(https://www.lacourt.org/courtroominformation/COM/E) regarding instructions on how to prepare for trial in

Dept. E.

[1] Both the TWT and Fast-Chain Employment agreements are attached as Exhibit A to Lin's declaration. Both agreements have the same arbitration language and both are signed by Plaintiff. (See Lin Decl., ¶ 2; Exh. A, pp. 5-6; compare Id., pp. 19-20.) As both agreements are identical, the Court discusses both together.

[2] The Court notes that the parties' agreement contains no explicit language as to the allocation of the arbitrator's fees in conformity with applicable law and there has been no evidence submitted of any other agreement as to allocation of fees. Accordingly, the Court proceeds with the understanding that that parties have not yet made any agreement as contemplated by ADR Services' rules – either as to the applicable law or the allocation of fees. As is noted above, in the absence of any such agreement, ADR Services' rules require a pro rata allocation.